



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :

- against - :

Police Officer Manuel Gomez :

Tax Registry No. 922430 :

Building Maintenance Section :

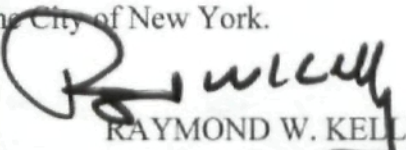
FINAL

ORDER

OF

DISMISSAL
-----X

Police Officer Manuel Gomez, Tax Registry No. 922430, Shield No. 7760, Social Security No. ending in 0329, having been served with written notice, has been tried on written Charges and Specifications numbered 83935/08 and 85695/09 as set forth on form P.D. 468-121, dated April 1, 2008 and September 3, 2009, respectively, and after a review of the entire record, has been found Guilty as Charged in Disciplinary Case No. 85695/09 of Specification Nos. 1, 3, 4, 5, 7 and 8; and found Not Guilty of Specification Nos. 2 and 6. He is found Not Guilty in Disciplinary Case No. 83935/08. Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Manuel Gomez from the Police Service of the City of New York.


RAYMOND W. KELLY
POLICE COMMISSIONER

EFFECTIVE: ON August 08, 2011 @ 0001HRS

COURTESY • PROFESSIONALISM • RESPECT



POLICE DEPARTMENT

February 28, 2011

In the Matter of the Charges and Specifications :

Case Nos. 83935/08 and
85695/09

- against - :

Police Officer Manuel Gomez :

Tax Registry No. 922430 :

Building Maintenance Section :

-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable David S. Weisel
Assistant Deputy Commissioner - Trials

A P P E A R A N C E:

For the Department:

Beth Douglas, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent:

Michael Martinez, Esq.
Worth, Longworth and London, LLP
111 John Street
New York, NY 10038

To:

HONORABLE RAYMOND W. KELLY
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

COURTESY • PROFESSIONALISM • RESPECT

POLICE OFFICER MANUEL GOMEZ

The above-named member of the Department appeared before the Court on October 13 and 14, 2010, charged with the following

Disciplinary Case No 83935/08

1 Said Police Officer Manuel Gomez assigned to Bronx Property Clerk, while on-duty, on or about November 15, 2007, at a location known to this Department, in Bronx County did fail and neglect to properly safeguard a prisoner to wit said officer did let a prisoner out of his sight and control while in an unauthorized bathroom

P G 203-05 Page 2, Paragraph 12 - PERFORMANCE ON DUTY
GENERAL REGULATIONS

2 Said Police Officer Manuel Gomez assigned as indicated in Specification #1 while on-duty, on or about November 15, 2007, at a location known to this Department, in Bronx County, did fail and neglect to immediately notify a supervisor that said officer let a prisoner out of his sight and control while in an unauthorized bathroom

P G 203-05 Page 1, Paragraph 1 - PERFORMANCE ON DUTY
GENERAL REGULATIONS

Disciplinary Case No 85695/09

1 Said Police Officer Manuel Gomez assigned to Building Maintenance Section, while off-duty, on or about August 27, 2009, within the confines of the 45th Precinct, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department to wit said officer was involved in a verbal and physical altercation with Ms Janice Rivera and when Ms Rivera attempted to leave the scene, said officer prevented her from doing so

P G 203-10 Page 1, Paragraph 5 - PUBLIC CONTACT – PROHIBITED CONDUCT

2 Said Police Officer Manuel Gomez assigned to Building Maintenance Section, while off-duty, on or about August 27, 2009, within the confines of the 45th Precinct, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department to wit said officer did take property belonging to Ms Janice Rivera without permission or authority

P G 203-10 Page 1, Paragraph 5 - PUBLIC CONTACT – PROHIBITED CONDUCT

3 Said Police Officer Manuel Gomez assigned to Building Maintenance Section, while off-duty, on or about August 27, 2009, within the confines of the 45th Precinct, Bronx County engaged in conduct prejudicial to the good order, efficiency or discipline of the Department to

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wit said officer was involved in a physical altercation with Mr Christopher Rinando and did strike Mr Christopher Rinando with a firearm

P G 203-10 Page 1, Paragraph 5 - PUBLIC CONTACT – PROHIBITED CONDUCT

4 Said Police Officer Manuel Gomez assigned to Building Maintenance Section, while off-duty, on or about August 27, 2009, within the confines of the 45th Precinct, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department to wit said officer did point a firearm at Mr Christopher Rinando, Mr Richard Gonzalez, and Mr Frank Ninivaggi

P G 203-10 Page 1, Paragraph 5 - PUBLIC CONTACT – PROHIBITED CONDUCT

5 Said Police Officer Manuel Gomez assigned to Building Maintenance Section while off-duty, on or about August 27, 2009, within the confines of the 45th Precinct, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department to wit said officer failed to identify himself as a member of the Department during an off-duty incident

P G 203-10 Page 1, Paragraph 5 - PUBLIC CONTACT – PROHIBITED CONDUCT

6 Said Police Officer Manuel Gomez assigned to Building Maintenance Section, while off-duty, on or about August 27, 2009, within the confines of the 45th Precinct, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department to wit said officer identified himself as "a Government Agent" during an off-duty incident

P G 203-10 Page 1, Paragraph 5 - PUBLIC CONTACT – PROHIBITED CONDUCT

7 Said Police Officer Manuel Gomez assigned to Building Maintenance Section, while off-duty, on or about August 27, 2009, within the confines of the 45th Precinct, Bronx County, after having been directed by off-duty New York City Police Captain Michael Cody to produce identification and to release Ms Janice Rivera, said officer did fail and neglect to comply with said order and resist being handcuffed

P G 203-03, Page 1, Paragraph 2 - COMPLIANCE WITH ORDERS
GENERAL REGULATIONS

8 Said Police Officer Manuel Gomez assigned to Building Maintenance Section, while off-duty, on or about August 27, 2009, within the confines of the 45th Precinct, Bronx County, after having been directed by New York City Police Sergeant Jude Norberg to get up against a vehicle, said officer did fail and neglect to comply with said order and resist being handcuffed

P G 203-03, Page 1, Paragraph 2 - COMPLIANCE WITH ORDERS
GENERAL REGULATIONS

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The Department was represented by Beth Douglas, Esq , Department Advocate's Office, and the Respondent was represented by Michael Martinez, Esq

The Respondent, through counsel, entered a plea of Not Guilty to the subject charges A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review

DECISION

In Case No 83935/08, the Respondent is found Not Guilty In Case No 85695/09, the Respondent is found Guilty of Specification Nos 1 3, 4, 5, 7 and 8 He is found Not Guilty of Specification Nos 2 and 6

SUMMARY OF EVIDENCE PRESENTEDThe Department's Case

The Department called Janice Rivera, Linda Dixon, Christopher Rinando, Frank Ninivaggi, Janet Ninivaggi, Police Officer William Leahy, Sergeant Jude Norberg, Ann Barry Captain Michael Cody, and Sergeant Thomas Oconnor as witnesses

Janice Rivera

Rivera testified that she had dated the Respondent for two-and-a-half years Their relationship ended in September 2010

On August 27, 2009, Rivera testified. she and the Respondent had plans to go to dinner together When she called the Respondent at approximately 6 00 p m , he did not pick up his telephone When Rivera called him a second time, the Respondent answered and told her he was

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still at work. She called back a few minutes later and got the same response from the Respondent. Rivera thought this was weird, so she decided to drive to the Respondent's house. Rivera believed that the Respondent was with another woman. She found the Respondent's car parked on the street and she waited there for approximately 25 minutes until the Respondent appeared with a female neighbor named Marleny Gomez (no relation to the Respondent). An annoyed Rivera walked up to the Respondent and asked him, "This is why you can't pick up your phone?"

Rivera returned to her car, but found that the battery was dead. She re-approached the Respondent and asked him for help. The Respondent told her that he would drive to a friend's house for jumper cables, and he asked Rivera to go along with him so that they could talk. The Respondent and Rivera started for the friend's house in the Throgs Neck neighborhood of the Bronx. The Respondent drove a Ford Mustang convertible.

Rivera testified that she and the Respondent argued in the car. She became tired and frustrated with the situation. At one point, she flung her hand, hitting a bottle of lotion that the Respondent kept in the car. The Respondent pulled the car over on Logan Avenue, probably to calm her down. Rivera did not want to continue the conversation with the Respondent, so she got out of the car. She was about to call a friend, when the Respondent also got out of the car and walked toward her. Rivera put her phone in her purse and zipped up the bag. At that point, the Respondent asked her whom she was going to call, grabbed the purse, and yanked it out of her hand. She yelled at him to give the purse back. Knowing that the Respondent would not give it back, though, she got back into his car. She entered the car through the passenger's window. She explained, "I jumped in the car through the window because I knew that if I

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attempted to open the door, he wouldn't let me go in and he would stay with my phone or my purse. Because she entered the vehicle head-first, her legs were sticking out of the window.

Rivera testified that the Respondent grabbed, punched and twisted her legs. After she got her body fully inside the vehicle, Rivera moved to the driver's seat. Meanwhile, the Respondent placed her purse outside the car by the left wheel. The Respondent opened the car door, and Rivera saw that the purse zipper was open. She saw a bulge in the Respondent's pocket, and she knew that he had taken her phone out of the purse. She told the Respondent that she was not leaving until he gave back the phone.

The Respondent and Rivera started to struggle again. The Respondent wanted her to get out of the car and yanked her by the arm. Rivera tried holding onto the steering wheel. Although Rivera was hitting and kicking the Respondent, the Respondent was strong and was able to remove her from the vehicle. The Respondent then got into the car and closed the door.

Rivera was upset because she knew that her phone was still in the car with the Respondent. She made a fist and struck the rear windshield. Although it was not her intention, the windshield shattered into pieces (see Respondent's Exhibit [RX] A, copy of photograph of the shattered windshield). Rivera cut her right hand on the glass and was bleeding heavily. She was in a state of shock and started to cry. The Respondent got out of the car and just stood there without showing any sign of concern. Meanwhile, a male spectator wrapped her hand with a towel, and a group of people approached the scene and started to argue with the Respondent.

Rivera's house was five minutes away, and she started to walk, then run, home. As she ran down Logan Avenue, she heard the Respondent say that she was under arrest "as if I was some criminal." When she reached the corner, she saw that the Respondent was chasing after her with handcuffs out. He reached her, put her left hand in the cuffs, repeated that she was

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under arrest, and "dragged" her back to the car. She said that the Respondent yanked her back to the car by her handcuffed hand.

At the car, a tall man stepped between the Respondent and Rivera and told the Respondent to release her. Rivera then saw several police officers running up the street approaching the scene. The Respondent was arrested, and Rivera was taken by ambulance to Jacobi Hospital, where she was given an X-ray and a tetanus shot. She declined stitches.

Rivera did not recall whether the Respondent identified himself as a police officer. She believed he did when a bystander said "call the cops." It was possible that when someone said to call 911, the Respondent replied that he already had done so.

On cross-examination, Rivera testified that after she dove head-first into the window of the Respondent's car, she was kicking in order to prevent the Respondent from removing her. When she later slammed her hand down on the windshield, she was surprised that the windshield broke. She never paid for the windshield, nor was she arrested for breaking it.

Rivera asserted that the Respondent did not render her any aid after she cut her hand. She did not recall the Respondent calling for the police or an ambulance. Three or four people approached the scene and started to argue with the Respondent. According to Rivera, these people were shocked that the Respondent was not helping her. She heard them ask the Respondent, "[W]hat kind of cop are you'?"

Rivera stated that a few hours after the incident, she was interviewed by Department investigators. She stated in the interview that the Respondent identified himself as a police officer. She never heard the Respondent state, "I'm a government agent."

Rivera did not recall the Respondent drawing his firearm, nor did she recall any physical confrontation between the Respondent and the crowd. She did not see a struggle between the

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Respondent and the on-duty police personnel who responded to the scene. She explained that she turned her head away after she saw the officers grab the Respondent and place him against a car. She later learned that the tall man at the scene was also a member of the Department (subsequently identified as Captain Michael Cody). The tall man was wearing jeans and a black shirt. Rivera did not recall seeing a shield or firearm on the tall man. Nor could she recall if the tall man identified himself as a Department member or if the Respondent asked him for identification (ID).

At no point during the incident did the Respondent tell Rivera that her cell phone was inside the purse. The day after the incident, a police officer gave Rivera back her cell phone.

On re-direct examination, Rivera testified that she notified the District Attorney's (DA's) Office that she did not want to cooperate with the criminal case against the Respondent. She testified that she still cared about him and did not want him to lose his job.

On re-cross-examination, Rivera testified that she informed investigators on the night of the incident that she did not "want to go forward with anything against" the Respondent. Because she cared about the Respondent, she complied with his request that she inform the DA's Office in writing that she did not want to testify against him or receive an order of protection against him.

Linda Dixon

Dixon, who was employed as a secretary, lived on Logan Avenue in The Bronx. At approximately 7:00 p.m. on August 27, 2009, she was talking on her phone inside her car, which was parked on her block. When she heard the sound of glass breaking, she exited her car and saw "a commotion." She heard cursing, and saw pushing and shoving, between the Respondent

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and Rivera. She explained that the Respondent was outside of his vehicle and was pushing and shoving Rivera. Meanwhile, Rivera was inside the vehicle, but it looked like she was trying to get out. Rivera's wrist was bleeding and she was saying, 'I need to find it. I need to find it. Where is it, I can't find it, leave me alone, get off me. I need to find my phone.'

Dixon testified that a few other people stopped alongside the road to see what was going on and to assist Rivera with her injury. At the time, Dixon did not know any of these other people. The Respondent told them, '[G]et the fuck out of her [sic], leave us alone, fuck you, mind your own goddamn business.' The Respondent also attempted to push away a man who was trying to help Rivera with a towel. Some of Dixon's neighbors came out into the street, and there was yelling. Dixon called 911, and approximately ten minutes later an ambulance arrived at the scene. At no point during the incident did the Respondent identify himself as a police officer.

On cross-examination, Dixon testified that of the neighbors who came out to the street, she knew only Frank and Janet Ninivaggi. She was already at the scene for approximately five minutes before the Ninivaggis arrived. She did not recall seeing a shirtless man there.

Dixon testified that she never saw the Respondent punch Rivera. What she observed was the Respondent pushing Rivera and "shuffling her around." She did not observe any kind of physical altercation between the Respondent and any man at the scene. At the time, Dixon believed that Rivera had cut her hand by punching the windshield in an attempt to escape from the car. She clarified that when she first saw Rivera, Rivera was outside the car but leaning forward into the car in search of her cell phone. Rivera had her purse with her. Dixon never heard the Respondent state to Rivera, "It's in there." Nor did she see him call 911. The first time that she heard the Respondent identify himself as a police officer was while he was

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“resisting arrest” She explained that the Respondent was moving his arms, and the responding officers brought him down to his knees. It required six officers to place him in handcuffs.

Before the police arrived, several of the men at the scene confronted the Respondent to calm him down.” Dixon did not hear any of these men mention anything about the Respondent being a police officer. At one point, the Respondent pushed one of the men. She described the Respondent as “very aggressive.”

Dixon testified that when Rivera started to walk away, the Respondent took out a gun and pointed it at the back of her head. He then dropped the gun. Although there were men standing around him, nobody attempted to grab the firearm. She saw only one of the men ever initiate physical contact with the Respondent. She explained that a man (subsequently identified as Christopher Rinando) touched the Respondent’s shoulder. At one point, according to Dixon, the Respondent pointed his gun at the people who had gathered. The Respondent’s firearm was the only one Dixon saw at the scene. No shots were fired. Dixon made two or three calls to 911.

On re-direct examination, Dixon testified that the Respondent dropped his gun after he pointed it at Rivera. He then picked the gun up and pointed it at Frank and Rinando.

On re-cross-examination, Dixon stated that at no point did she see the Respondent fall to the ground.

Upon questioning by the Court, Dixon stated that she observed Rivera look for her phone inside her purse and inside the Respondent’s car. Rivera was at the passenger’s side of the car.

Christopher Rinando

Rinando, a postal worker, was picking up his girlfriend at approximately 7:00 p.m. on August 27, 2009. She lived on Logan Avenue. Rinando observed the altercation between the

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Respondent and Rivera It appeared that the Respondent and Rivera were "grappling for something or arguing very close together outside the vehicle " When Rinando noticed that Rivera's arm was gushing blood, he jumped out of his car to help A young man approached the scene with a towel, and Rinando wrapped the towel around Rivera's wrist Rivera asked to use Rinando's cell phone While Rivera was on the phone, the Respondent called 911

Rivera walked across the street and the Respondent followed Rinando saw the Respondent reach over Rivera, as if he was reaching into her purse Rivera was screaming for the Respondent to get off of her At that point, Rinando grabbed the Respondent "around the back " from behind and pulled him away from Rivera "to kind of calm the situation down " Rinando did not say anything to the Respondent at this time The Respondent spun around and displayed his firearm

Rinando explained that as the Respondent was spinning around, something hard struck his left elbow, causing a small cut The Respondent pointed the gun at Rinando's upper torso Rinando told the Respondent not to shoot and started backing away As he was backing away the Respondent dropped the gun The Respondent then picked the gun back up and pointed it at two other men who had approached the scene, Frank and a man named Rick (subsequently identified as Richard Gonzalez) Prior to the incident, Rinando did not know either of these men The Respondent did not identify himself as a police officer

When Rivera started running to the corner, the Respondent turned his attention toward her The Respondent chased after her, and Rinando lost sight of them When they returned into view, Rinando saw Rivera with one hand cuffed The Respondent was holding her other arm and pulling her as if he were pulling a dog that would not walk Rivera was on her feet, though The

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Respondent pointed at Rinando and told him that he was under arrest. The Respondent did not identify himself as a police officer or give a reason for arrest.

At that point, Cody interceded. Cody stepped between the Respondent and Rinando and informed the Respondent that he was "on the job." Rinando was not certain if the Respondent identified himself as a police officer after that. After the ambulance arrived, an emergency medical technician (EMT) cleaned Rinando's elbow injury. He did not seek any further medical treatment. He then went to the station house to give a statement.

On cross-examination, Rinando testified that he was wearing a shirt at the time of the incident. He did not recall any shirtless men being present. He did not see how Rivera injured her hand, but the amount of blood led him to believe that she had cut an artery. It was clear that she needed immediate medical attention. When Rinando first approached the scene, the man who provided the towel was the only spectator there. While Rinando wrapped Rivera's wrist with the towel, the Respondent told him to "mind his own business and get the F out of here." The Respondent also took out handcuffs and attempted to arrest Rinando, but Rinando backed away. Rinando conceded that the sequence of events might be a little off in his mind, but this attempted arrest took place before he had any physical contact with the Respondent.

When Rivera borrowed Rinando's cell phone, she called her brother. Rinando heard Rivera tell her brother that she had been assaulted. The call lasted a minute or two. During this period, the Respondent was on a call of his own, requesting a police response. Rinando did not hear the Respondent request an ambulance, and Rinando told the Respondent that he should have asked for one. By the time Rivera finished her call to her brother, one more person had approached.

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Rinando grabbed the Respondent around the shoulders and arms. Rinando was 5'8" tall and weighed 230 pounds at the time. At no point did he observe the Respondent fall to the ground or do anything that indicated he was in pain. While the Respondent was chasing after Rivera, Rinando called 911. He never saw the Respondent point his gun at the back of Rivera's head.

Rinando never heard the Respondent claim to be a "government agent," but did hear the Respondent say something about obstructing governmental administration. By the time Cody approached the scene, there were approximately 20 people there. Rinando did not see Cody show the Respondent identification, but Cody's back was to Rinando so it was possible that Cody displayed something. At no point did Rinando see Cody display a gun or shield. Cody was wearing shorts and a T-shirt. Cody and the Respondent exchanged words, but Rinando did not know what they were talking about.

After on-duty officers arrived at the scene, Rinando heard the Respondent tell them that Rinando should be arrested. When asked if he ever spoke to the other spectators about the incident, Rinando replied, "Vaguely at the scene. I really didn't speak to anybody personally one on one."

Frank Ninivaggi

Frank retired from the New York City Fire Department (FDNY) as a lieutenant in 2002. He currently worked as an electrician and lived on Logan Avenue. He was at home on August 27, 2009, when he heard a commotion outside. When he looked out his window, he saw three men and a woman arguing. He recognized one of the men as his neighbor, Rick Gonzalez. Frank went outside and asked Gonzalez what was going on. Gonzalez told him that the

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Respondent had been "beating on" Rivera. One of the other men present was Rinando, but Frank did not know him at the time. Rinando and the Respondent were arguing. The Respondent and Rivera were on opposite sides of the car, and Rinando was trying to prevent the Respondent from getting at her. Rinando did this by stepping in the Respondent's path. Meanwhile, Frank was just standing back, trying to keep the situation from escalating. He knew that the police had already been called. An elderly female neighbor had informed him of this fact. He did not see Dixon there.

At one point, the Respondent identified himself as a police officer. The Respondent had his handcuffs in his hand and displayed his shield. The Respondent attempted to arrest Rivera, who was bleeding from her hand. Rinando stood in the Respondent's way to prevent him from effecting an arrest of Rivera. The men were arguing, but there was no physical contact until the Respondent drew his gun, striking Rinando in the arm. The Respondent drew the gun from his back area. The gun then fell to the ground. By that point, all of the neighbors had come out of their houses, and a lot of people were yelling. The Respondent picked up the gun and aimed it at Rinando, Gonzalez and Frank. He did not say anything while pointing the firearm. This part of the incident took place on the opposite side of the street from where Rivera had been sitting.

When Rivera started walking down the block, the Respondent followed after her. Frank lost sight of them. When they reappeared less than a minute later, the Respondent had his hand under Rivera's arm. Frank did not observe anything in the Respondent's or Rivera's hands. At that point, police cars arrived. Once the on-duty officers arrived, Frank did not hear the Respondent identify himself as a police officer.

On cross-examination, Frank testified that he did not recall seeing anybody without a shirt at the scene. Frank assumed at the time that Rivera had been assaulted by the Respondent.

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The Respondent and Rinando were standing four or five feet apart from each other when the Respondent displayed his shield and identified himself as a police officer. The Respondent wanted to walk forward toward Rivera, but Rinando, Gonzalez, and Frank succeeded in pushing him backward to the other side of the street. By the time they got across the street, approximately ten people were standing in front of the Respondent. When the Respondent and Rivera returned from the corner, the Respondent was not dragging her and did not have his gun in hand. At no point did Frank see the Respondent fall to the ground or point his gun at the back of Rivera's head. Nor did he ever see Rinando wrap his arms around the Respondent. Frank did not recall the Respondent telling the responding officers that he wanted certain people arrested. He did not recall a second off-duty member of the service (besides Cody) becoming involved in the incident.

Janet Nimivaggi

Janet testified that when she and Frank exited their house on the day of the incident, they saw the Respondent forcibly pulling Rivera out of the car by her arms. Rivera was asking about her telephone, and the Respondent was loudly yelling at her. Rivera's hand was bleeding and wrapped in a towel. It looked to Janet like the Respondent was trying to assault Rivera. Rinando, Gonzalez, and Dixon were already at the scene, and Rinando was trying to intercede on behalf of Rivera, saying things like "leave her alone" and "why are you hitting a woman." Very quickly, Janet's son, Gonzalez's mother, and two other neighbors came out to the street. Rinando and the Respondent were yelling at each other, and a neighbor informed Janet that 911 had already been called.

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Rivera walked down the block in an attempt to get away from the Respondent, but the Respondent followed her. The Respondent then pulled out his gun, pointed it at Frank, and waved it from side to side at other individuals. He then dropped the gun, picked it up, and continued to follow Rivera. Janet lost sight of them and when they returned to view a few minutes later the Respondent was pulling Rivera. At that point, an ambulance arrived. After a "very long" wait, the police also arrived at the scene. At no point did Janet hear the Respondent identify himself as a police officer.

On cross-examination, Janet testified that she looked out her window before Frank did, but they exited the house at the same time. When she exited the house, Rivera was still seated in the car. Janet did not notice any damage to the car. After the Respondent pulled Rivera out of the car, he continued to hold onto her. Rinando told the Respondent to leave Rivera alone. The exchange between Rinando and the Respondent became "loud." Janet described Rinando as confrontational. Although Rinando gave the impression that he would physically intervene if necessary to protect Rivera, at no point did Janet see Rinando put his hands on the Respondent.

The Respondent talked about arresting Rivera and then arresting Rinando for interfering with Rivera's arrest. She agreed that the Respondent said something like "obstructing governmental administration." At one point, Rivera borrowed Gonzalez's cell phone.

Retired Sergeant Ann Barry

Barry retired from the Department in April 2010 as a sergeant after 20 years of service. She was married to Cody. While off-duty on August 27, 2009, she and Cody were driving on Lafayette Avenue in the Bronx. At the intersection with Logan Avenue, she noticed a crowd. She then saw the altercation taking place between the Respondent and Rivera. Barry saw the

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Respondent dragging Rivera down the street Barry explained that Rivera had a handcuff on one of her wrists, and the Respondent was pulling her down the street by the other end of the handcuffs Rivera stumbled behind the Respondent until they reached the Respondent's car where he pinned her against the car and opened the driver's side door The Respondent spoke to Rivera in an intimidating fashion Their heads were very close to each other Barry could not hear what they were saying, however Barry called 911 from her car while Cody approached the Respondent

After Barry parked her car, she joined Cody on the street There were people yelling at each other and 'a lot of commotion going on' Barry heard Cody tell the Respondent, "I'm the police" Cody also lifted up his shirt to display his shield Barry also said, "[W]e're the police but did not display her shield or any sort of ID Somebody in the crowd informed them that the Respondent had been waving a gun, and Barry heard another person complain about being hit with a gun

Barry asked the Respondent who he worked for, and the Respondent told her that he worked for 'the state' This response puzzled Barry At no point did the Respondent identify himself to Barry as a police officer or display any sort of Department ID An ambulance and on-duty police personnel arrived at the scene at the same time When the on-duty officers instructed the Respondent to let go of Rivera, he did not comply The Respondent needed to be forcibly separated from Rivera

On cross-examination, Barry testified that Cody had his gun and shield on his belt She conceded that Cody did not identify himself as a captain Barry hung up the phone in the middle of her 911 call She did this because she felt it was more important to be with Cody She admitted that she did not identify herself as a Department member during the call

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Barry stated that there were approximately 15 civilians in the area. The Respondent and Rinando were 'going back and forth' that each wanted the other arrested. Barry did not hear the Respondent say that Rinando should be arrested specifically for obstructing governmental administration. Barry never saw the Respondent strike Rivera.

Captain Michael Cody

Cody, a 26-year member of the service, was assigned as the commanding officer of Gang Squad Manhattan. He testified that when he and Barry were driving in the area of Logan Avenue at the time of the incident, he observed the Respondent dragging Rivera by the arm. The Respondent was yelling at Rivera, "[Y]ou are not going fucking anywhere, you are coming with me." Meanwhile, several spectators were screaming for the Respondent to leave her alone. There was a lot of confusion on the street. Cody was wearing jeans and a T-shirt, so he took his shield out of his wallet and placed it on his waistband in case he needed to produce identification. He then got out of the car. At that point, Cody realized that Rivera had one hand cuffed and was bleeding from her arm.

After Cody lifted his shirt to display his shield and identified himself as a police officer, the Respondent told Cody, "I got her, she is OGA." As Cody asked the Respondent if he was a police officer, Rinando informed Cody that the Respondent had a gun. When Cody asked the Respondent a second time if he was a police officer, the Respondent replied, "[S]he is resisting, I am a government agent." At that point, Barry approached and told the Respondent, "[W]e're the police." Cody instructed the Respondent to let go of Rivera, but he did not comply. The Respondent told Cody, "Who are you, I am not letting go of her, she is coming with me, she is resisting."

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As Cody asked the Respondent a third time if he was a police officer and if he was taking police action, an ambulance arrived at the scene Leahy and Norberg followed Cody identified himself to them as an off-duty captain

Cody testified that while the Respondent used terminology like "OGA" and "resisting," he did not believe the Respondent was a real police officer He believed that the Respondent was committing a robbery or impersonating an officer

Cody, Leahy and Norberg had to forcibly separate the Respondent from Rivera. When the Respondent "was asked to step up against the car," he became violent and threw his arms back The Respondent stated, "I am not going anywhere How come you are not grabbing the guys over there? It's not me, it's them You're fucking wrong I don't know who the fuck you are " The Respondent refused to be handcuffed He kicked and threw his body around Ultimately, he "was brought to the ground " Only after the Respondent was handcuffed did Cody learn that the Respondent was, in fact, a member of the Department

On cross-examination, Cody testified that when the Respondent was dragging Rivera, Rivera was trying to go the other way and was losing her balance The Respondent told Rivera that she was getting arrested

Cody was wearing an untucked SpongeBob SquarePants T-shirt He carried his gun on the right side of his waistband, and he placed his shield on the left side He lifted up his shirt to display the shield then tucked his shirt behind the shield to keep it visible Because he saw that the Respondent had handcuffs, he also stated in a loud voice, "I am a police officer Are you law enforcement? Are you a police officer?" At the time, there were people standing around and behind Cody Rinando was one of the people standing behind him

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Cody never heard the Respondent say 'obstructing governmental administration,' as opposed to "OGA "

Cody testified that the Respondent was sweating and out of breath. Cody did not know at the time how the Respondent's car was damaged.

When Norberg and Leahy arrived at the scene, they walked directly to Cody. Cody and Leahy knew each other. Cody informed them that the Respondent might be a police officer and armed. Cody testified that the Respondent resisted arrest by fighting back, but he admitted that he did not strike anybody. The Respondent fell to his knees while being apprehended.

Police Officer William Leahy

Leahy was assigned to the 45 Precinct. On August 27, 2009, he was Sergeant Jude Norberg's driver. At approximately 7:00 p.m. that day, they responded to a dispute on Logan Avenue. On the way there, however, the job was re-categorized as a 10-13.

Leahy and Norberg were the first unit to arrive at the scene. Leahy knew Cody, and Cody informed him that the Respondent had identified himself as a "government agent." Cody believed that the Respondent was a police officer, but he was not certain of this. There were five or six people in the area. Shortly after the response of the on-duty officers, an ambulance arrived.

Leahy, Norberg and Cody approached the Respondent and asked him what was going on. An irate Respondent yelled, 'I want them arrested.' When Leahy told him to place his hands on the car, the Respondent did not comply. Instead, he started to flail his arms and repeated 'I want them arrested.' At that point, Leahy, Norberg and Cody grabbed the Respondent to forcibly put his hands on the car. When Leahy had the Respondent by an arm, the Respondent tried to pull

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away. Once the Respondent was secured against the car, Leahy removed the Respondent's firearm from the front right part of his waistband. It was not holstered. Leahy then removed himself from the situation and was not involved in any way in handcuffing the Respondent. Leahy did not know the Respondent before that day and never heard the Respondent identify himself as a police officer.

On cross-examination, Leahy testified that when he arrived at the scene, the Respondent was arguing with civilians. There was no physical contact between the Respondent and the people with whom he was arguing. Cody was standing approximately 20 feet from the Respondent. Leahy did not recall if Cody's shield and firearm were visible. The Respondent was pointing at spectators as he talked about wanting people arrested. Leahy did not recall the Respondent mentioning obstructing governmental administration or giving any other reason for arresting anybody. At no point did he see the Respondent strike or kick any member of the Department.

Sergeant Jude Norberg

Norberg was assigned to the 45 Precinct. On August 27, 2009, he and Leahy responded to the dispute on Logan Avenue. He explained that the job first came over the radio as a dispute, was changed to an assault in progress, and then changed again to a 10-13. Upon their arrival, they found "a large commotion in the street." The first person Norberg encountered was Rinando, who had a laceration on his arm and complained of being pistol-whipped by the Respondent. Cody then approached and showed his shield, identifying himself as an off-duty captain. Cody informed Norberg that the Respondent had identified himself as some sort of

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government agent ' Cody believed the Respondent might be a police officer, but he was not certain

Norberg and Leahy approached the Respondent and ordered him three or four times to get up against the car. The Respondent did not comply. Norberg described the Respondent as "very erratic" and "wound up." The Respondent kept pointing into the crowd and stating, "It's those guys over there." Because they believed that the Respondent had a gun, Norberg and Leahy forcibly placed the Respondent against the car. Leahy then removed the Respondent's firearm from the right side of his waistband. Norberg, Cody, and two or three responding officers were needed to place the Respondent in handcuffs. This was because the Respondent would stiffen or flail his arms when they tried to get his arms behind his back. Everybody remained upright. At no point did Norberg see the Respondent fall to the ground or hear the Respondent identify himself as a police officer. Norberg first learned that the Respondent was a member of the service after he was handcuffed and a Department ID card was removed from his wallet.

On cross-examination, Norberg testified that he was designated the arresting officer for the Respondent's arrest. He vouchered the Respondent's gun. The gun was not in a holster, but a holster was later recovered from the scene. He did not know who placed the original 911 call.

Norberg never heard the Respondent claim to be a government agent. The Respondent indicated that he wanted people in the crowd arrested, but Norberg did not recall the Respondent mentioning obstruction of governmental administration or any other ground for arrest. Norberg noted that "there was so much going on at that moment and a lot of yelling."

Norberg admitted stating in a protocol interview on the night of the incident that the Respondent was "mildly resisting" at first and waving his arms.

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Sergeant Thomas Oconnor

Oconnor, a 16-year member of the Department, was assigned to the Bronx Property Clerk (BXPC). He had worked at BXPC since September 2002. The command was located in the Basement (B level) of the Bronx Criminal Court building.

Oconnor testified that at approximately 11:45 a.m. on November 15, 2007, the Respondent was working at a BXPC public window when a man named Kevin Moore approached to retrieve property. Oconnor explained to the Court that a person picking up property must show two forms of ID. On that day, Moore showed a form of ID that the Respondent believed to be fraudulent. When the Respondent brought his suspicion to Oconnor's attention, Oconnor told him to confer with Assistant District Attorney (ADA) Bill Zelenka, who was in charge of fraudulent-documents cases. Zelenka's office was located across the street. Oconnor testified that, to the best of his recollection, he told the Respondent to call Zelenka on the telephone. Although Moore was not in police custody at that point, Oconnor asserted that he was not free to leave because the Respondent was still determining whether or not the identification was fraudulent.

Oconnor went to his office to drop off paperwork and then returned to the public window area. No more than five minutes had elapsed. Oconnor noticed that the Respondent and Moore were no longer there. It was rather busy, and Oconnor asked Police Officer Harper if he had seen the Respondent. Harper told Oconnor that the Respondent was "down the hallway" with Moore. Oconnor looked down the hallway, where there was a bathroom.

Oconnor explained to the Court that the bathroom was meant to be utilized by members of the Department of Citywide Administrative Services (DCAS) assigned to building maintenance as well as BXPC personnel. The bathroom required a key to open. There was only

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one key and it was kept inside the front door of the BXPC facility. Inside the bathroom were two rows of lockers. At the far end of the lockers was the toilet area. There were two toilet stalls and two showers. The door was 25 to 30 feet from the toilet area and the toilet stalls were not visible from the door. The DCAS workers used the room as a kitchen area, so there were utensils, toasters, and a microwave inside the locker area.

Oconnor knocked on the bathroom door. Approximately 30 seconds later, the Respondent answered. Oconnor asked him what he was doing, and the Respondent informed him that Moore needed to go to the bathroom. Oconnor asked the Respondent something to the effect of, "Why are you standing here if [Moore] is in the bathroom? The bathroom is all the way down there, and aren't you concerned that something may happen? [Moore] may do something, or he may be hiding something." Oconnor walked to the toilet area, where he found Moore standing in a stall. Oconnor knocked on the stall and told Moore that he needed to leave the bathroom. Moore's pants were up. Oconnor, the Respondent and Moore walked out of the bathroom together.

Oconnor asserted that the Respondent should have had Moore use the bathroom in Central Booking or in the DA's Office's facilities, where the arrest would have been processed. Approximately five minutes after leaving the bathroom, Moore was placed under arrest.

Oconnor issued the Respondent a command discipline (CD) for creating a dangerous condition. He explained that the dangerous condition was taking an unapprehended individual into a private bathroom.

On cross-examination, Oconnor testified that the Respondent was on full duty status on the day of the incident. Less than ten arrests were made at BXPC each year, and probably all of

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the arrests made in 2007 were made by the Respondent. The Respondent was one of only two officers trained in identifying fraudulent documents.

As a supervisor, Oconnor authorized arrests made by police officers. In Moore's case, Zelenka decided that the prosecution would go forward before the arrest was made. Oconnor explained that this was because the Respondent had formed a very good relationship with Zelenka. Although Oconnor did not recall the sequence of events in this specific case, it would not have been unusual for the Respondent to confer with Zelenka before bringing the matter to Oconnor's attention. At that point, Oconnor would have confirmed with Zelenka himself before authorizing the arrest.

Moore was not yet in police custody during the period prior to Oconnor's authorization. Oconnor described Moore as being at that point "a person of interest." As a person of interest, the Respondent would have wanted to keep Moore close by. There were no public restrooms on the basement level of the building. Oconnor agreed that when the Respondent went with Moore to the bathroom, he had not yet placed Moore under arrest, and an arrest had not yet been authorized. Oconnor had not yet authorized the arrest.

Upon questioning by the Court, Oconnor testified that the B level bathroom was in the outer ring hallway of the building.

On re-cross-examination, Oconnor clarified that there was not only one key, but that all male BXPC personnel had a copy of the key for the bathroom. Anybody who did not have a copy needed to borrow the key that was kept in the command.

On re-direct examination, Oconnor testified that he believed the key used by the Respondent on the day of Moore's arrest was the shared key taken from the command. He stated

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on continued re-cross-examination, however, that he believed the Respondent had his own copy of the key

Upon questioning by the Court, Oconnor testified that even if Moore had not committed a crime and the Respondent had not let Moore out of his sight, he would have still issued the Respondent a CD for being alone with a civilian in that bathroom

The Respondent's Case

The Respondent called Marleny Gomez as a witness and testified on his own behalf

Marleny Gomez

Marleny Gomez (Marleny) currently resided in New Jersey but used to live in The Bronx in the same building as the Respondent. She also used to date the Respondent's best friend, but she and the Respondent were never involved romantically. They were not related to each other.

On August 27, 2009, Marleny went to the Respondent for advice after an ex-boyfriend left her threatening telephone messages. The Respondent told her that she needed to file a police report, and he escorted her to the 45 Precinct station house. After filing a report, Marleny and the Respondent drove back to their building, where they encountered Rivera. Marleny described Rivera as "upset and mad," "irrational, violent." Rivera was "jumping in his face" and pushed him. Rivera seemed to believe that the Respondent and Marleny were romantically involved, and Marleny tried to explain to her that there was nothing going on. Marleny also tried to show Rivera a copy of the police report she had just filed, but Rivera was hysterical and not interested in hearing an explanation. While Rivera continued to scream at the Respondent, he remained

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calm At one point, Rivera walked away but then returned because she needed help starting her car

On cross-examination, Marleny testified that she did not call 911 when Rivera pushed the Respondent

The Respondent

The Respondent had been a member of the Department for 12 years and was currently assigned to the Building Maintenance Section He had been an intelligence officer in the United States Army Reserve for 18 years

On August 27, 2009, the Respondent's neighbor, Marleny, played for him death threats that she had received from her boyfriend The Respondent was alarmed by these threatening telephone messages and went with Marleny to the 45 Precinct station house to report them While at the station house, he received over a dozen telephone calls from Rivera At that time, he and Rivera had dated on-and-off for approximately a year and a half They had plans to have dinner together that night

Rivera was waiting for the Respondent when he returned to his building with Marleny Rivera ran up to the car, started screaming, 'jumped in my face,' and pushed him hard An irate Rivera cursed at the Respondent and accused him of being unfaithful with Marleny The Respondent and Marleny tried to explain the situation, but Rivera would not listen to them This was not the first time that the Respondent saw Rivera act violently Approximately eight months earlier Rivera scratched his face and keyed his car Rivera was arrested, but the Respondent later decided to drop the charges against her

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Rivera walked away but then returned because her car would not start. After looking under the hood of Rivera's car, he decided to drive to a friend's house to borrow jumper cables. The friend lived five minutes away, and the Respondent told Rivera that she could come along for the ride if she wanted to talk. She assented.

As the Respondent and Rivera drove up Logan Avenue, he tried again to explain the Marleny situation. Rivera reacted by screaming and cursing again. She also slammed her fist on the dashboard, hit the Respondent in the shoulder, and broke a bottle of lotion. At that point, the Respondent pulled over to the side of the road and told her to get out of the car. They were only a block and a half from Rivera's house, so it would have been possible for her to walk home.

Rivera would not get out of the car, so the Respondent opened the door for her. Rivera exited the vehicle, and they exchanged words on the street. As the Respondent started to get back into the car, Rivera dove headfirst into the open passenger side window. The Respondent told her again to get out of the car, and he grabbed her by the legs and attempted to pull her out. Rivera, who was wearing boots, kicked the Respondent five or six times in the chest. At no point did the Respondent punch her legs. Rivera was able to pull herself all the way into the car and sat in the driver's seat. The Respondent opened the driver's door and repeated for her to get out. He then grabbed her purse, and a struggle over the purse ensued. He ultimately gained control of the purse and placed it on the ground near the rear of the car, approximately four feet from where Rivera was sitting. The Respondent explained that he did this to lure Rivera out of the car and not to deprive her of her property. The purse was in his hands for only three seconds. At no point did he remove Rivera's cell phone from the purse.

Rivera would still not get out of the car, so the Respondent finally pulled her out by the arms. He saw Rivera grab her purse, and then he closed his door. Before he could drive away,

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however, Rivera smashed his rear windshield. He explained that the windshield was made of a strong glass plate, and Rivera must have struck it with tremendous force to break it. Because the vehicle was a convertible, the windshield and car top were attached and had to be replaced as one unit. It cost him \$2,225 to repair the damage.

When the Respondent got out of the car to inspect the damage, he saw that Rivera was bleeding profusely. He asked to see her injury, but she would not let him. He feared that she had punctured a vein, so he called 911 for an ambulance. He was out of breath from trying to get her out of the car.

When asked whether his intention in calling 911 was to get medical attention for Rivera, to have her arrested, or both, he answered that his "first" intention was to obtain medical attention. "then the job had to make a determination what is going to happen from there because it was a domestic incident." He testified that he wanted her to be arrested for damaging his car.

Meanwhile, Rinando approached the scene. The Respondent described Rinando as a "guy with no shirt and a beer in his hand." The belligerent Rinando was cursing and screaming. Rinando was with another man whom the Respondent described as Italian-American, weighing 250 pounds and having a "DA hairstyle."¹ The Respondent identified himself to these men as a police officer both verbally and by pulling out his wallet and displaying his shield and Department ID card. He instructed the men to stay back. The men accused him of cutting Rivera's hand. He informed them that Rivera had cut her hand herself by breaking the window. He also informed them that he was already calling 911 for an ambulance.

According to the Respondent, approximately five people were present to see him when he displayed his police credentials. Rinando told him, "I don't give a fuck if you are a cop. I don't

¹ This is a hairstyle in which the hair is slicked back and comes to a point at the neck, parted in the middle. It is thought by some to resemble the posterior portion of a duck, leading to the "DA" abbreviation.

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like cops " Rinando continued to curse and scream, threw his beer bottle to the ground and then pushed the Respondent The Respondent was still on the telephone with the 911 operator, and Rinando s push knocked the phone out of his hand The Respondent replied, "Police Back up and told Rinando that he was under arrest A crowd was gathering The Respondent attempted to grab and handcuff Rinando, but there were men approaching him on all sides The Respondent was forced backward across the street while repeating, Police Back up You're under arrest You are all under arrest for obstructing governmental administration, for assaulting an officer "

At one point, while the Respondent was focused on somebody else, Rinando walked around him and "jumped at" his back, grabbing him in a bear hug The Respondent tripped and fell backward against a brick wall The Respondent felt a sharp pain, as he broke three ribs The Respondent's gun fell out of the quick-release holster he wore at his front Rinando tried to grab the gun, but the Respondent picked the gun back up before Rinando could reach it At this point, the Respondent was entirely surrounded by six men and there were 20 or 30 people in the area He pointed his gun at the men while continuing to repeat, "Police Don t move " In total, the Respondent identified himself as a police officer at least 20 times, but nobody complied with his orders that they back up until he pointed his firearm at them While this was going on Rivera was still near the car There was never any contact between his firearm and Rinando

At one point, the Respondent saw Rivera walking down the block, leaving a trail of blood behind her The Respondent secured his firearm back in its holster and followed after her He reached her at the corner The Respondent informed her that the ambulance was on its way and that she could not leave Rivera was screaming, and the Respondent put a handcuff on her uninjured hand He explained that he did this because Rivera needed medical attention, and he

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did not have the strength to pull her back to the car due to his own injury. He held onto the handcuffs, and he and Rivera walked back to the car together. Rivera was crying but compliant.

Toward the end of the incident, Cody arrived at the scene. The Respondent described Cody as a "tall guy with a SpongeBob shirt and terry cloth shorts." Cody approached the Respondent and lifted up his shirt, displaying a gun. In addition, Cody told the Respondent, "I'm on the job." The Respondent did not see a shield when Cody lifted his shirt, and he told Cody, "[P]olice, identify yourself, what is your shield, your tax." Cody replied, "You're going to find out who I am, buddy." The Respondent repeatedly asked Cody who he was. Meanwhile, Rinando and the other men were screaming and cursing at him. He described the scene as total chaos. The Respondent re-identified himself as a police officer and was telling people in the crowd what they were going to be arrested for. At no point did he identify himself as a "government agent."

An ambulance and on-duty police personnel arrived at the scene. The Respondent waved over the patrol supervisor and said, "[S]ergeant, he is under arrest for obstructing governmental administration, for disorderly conduct and for resisting arrest," referring to Rinando. The Respondent pointed out other men in the crowd and gave reasons for arrest.

The Respondent was surprised when he was placed under arrest. He first testified that he did not recall being instructed to place his hands on the car, but later admitted that the officers did so. He then asserted that "when they first came up to me so quick they didn't say put my hands they just more or less bum rushed me, kind of like a tackle in a football team. They didn't say anything."

When Leahy, Norberg, and three other officers grabbed the Respondent, he told them, "I am a cop. I called you. I called 911." He was holding his injured side when the officers pulled

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his arm and handcuffed him. Because he still did not know who Cody was, he warned the officers that Cody had a gun.

The Respondent was taken to the 45 Precinct station house, where he received medical attention from an EMT. RX C was a copy of the FDNY Prehospital Care Report, prepared by an EMT on the day of the incident. It indicated that the Respondent had left flank pain and swelling, and multiple bruising to the arms.

The Respondent testified that upon his release from custody, he went to see a doctor for further medical attention. X-rays confirmed that he had three multiple fractures, and he was prescribed Vicodin for the pain (see RX D, doctor's note, dated Sept. 2, 2009, indicating that he had sustained fracture of left anterior ribs).

RX B was a compact disc containing the seven 911 calls relating to the incident. The first call was made by the Respondent. He stated, "You're going to jail," then the 911 operator answered.² The Respondent first asked 911 for a police car to respond. A male asked him something like, "How about asking for a fucking ambulance instead of a police car" (the Respondent eventually did so). This male gave the Respondent the address. A female is heard crying, "Oh my God!" The Respondent is heard talking with people at the scene. Statements he made to these individuals included, "You're going to jail," "Police sir, walk away" and "Her phone's right there, I don't have anything." The Respondent was out of breath and the 911 operator asked him several times forcefully to give her the details. When she asked, "What's happening?" he responded, "I have a - I need a police car." The call ends abruptly.

² The Respondent stated something indecipherable. It may have been "Yeah come" "Yeah okay," or "Yeah I'm a cop," but it is also unclear whom he was speaking to.

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The second call was made by a female. She explained that there was an argument, a female was bleeding from her wrist, a male was beating her, and she was running down the block. She did not see him with any weapons.

The third call was made by a male, who stated that there was a male waving a gun who pointed it at five individuals, including the caller.

The fourth call was made by Gonzalez. He stated that a male "just took the gun out on everybody" and was now chasing a female. She was bleeding and running away. The male then dragged her back.

The fifth call was made by a female. She described the situation as a domestic dispute, a 'brawl' in which a male was beating up a female, and in which other males were "getting involved." The caller indicated that she did not see any weapons.

The sixth call was made by Barry. She said, "There's a man trying to put handcuffs on a woman. I don't believe he's a police officer." There were people trying to stop him. Individuals can again be heard screaming in the background. "Assault" and "You're under arrest" can be made out.

The seventh call was made by a male. He said, "I got an officer with a firearm. He just pointed it at three civilians. The guy is running after somebody with a gun. There's a cop with a firearm, and he's running after somebody with it. He just pointed it at me. He dropped it, it could have went off. He's telling me to mind my business while he's beating up this chick.

He's got a handcuff." The caller told the male, "I'm under arrest?" All right, buddy. Yeah, all right, buddy."

On November 15, 2007, the Respondent was full-duty and assigned to BXPC, where his responsibilities included assisting ADAs in retrieving property for their cases and returning

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property to people who had been arrested. When a person came into the command to retrieve property, he would check the individual's identification. He received military training in identifying fraudulent identification. After making five or six arrests for fraudulent identification, the Department also sent him for training on the subject. During his time at BXPC, he made approximately a dozen arrests. Nobody else in the command made arrests during that period. He explained that it was frowned upon for him to make arrests because he made the other officers in the unit look bad. Each time he made an arrest, O'Connor needed to prepare a memorandum.

When Moore came to the public window to retrieve money on the day in question, the Respondent determined that the ID card Moore showed was fraudulent. The Respondent then went across the street to confirm his determination with Zelenka, before informing O'Connor. The Respondent explained, "Before I would bring it to the sergeant, I had to do my investigative checking first." Prior to going across the street, he told Moore that "the counter [was] taking a little while to cut [his] check." He told Moore this because he did not want Moore to leave, but also did not want Moore to know he was being investigated.

By checking Zelenka's big book of ID cards, the Respondent confirmed that Moore's ID was, in fact, fraudulent. Zelenka told him that "you got a good arrest it's a felony go process it." The Respondent, who spent a total of three to five minutes in Zelenka's office, then ran back across the street and spoke with O'Connor. When he informed O'Connor that he had a felony arrest and that the case had already been verified by Zelenka, O'Connor seemed upset. O'Connor was busy at the time and told the Respondent that he would check with Zelenka himself. O'Connor told him, "Go outside and do your job. I will check into it and get back to you." At no point did O'Connor authorize Moore's arrest.

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The Respondent returned to the public window, where Moore asked him if his check was ready. When the Respondent told Moore that he would have to wait five minutes longer for the check, Moore replied that he needed to go to the bathroom. The Respondent informed Moore that there were no public restrooms on that floor and asked if he could wait to go the bathroom. Moore told the Respondent that he could not wait, so the Respondent took him to the employee bathroom. The Respondent explained that he did not want Moore to use a public restroom upstairs because he did not want Moore to leave the premises.

Before entering the bathroom, Moore consented to a "pat down." Moore had gone through a metal detector to enter the building, but the Respondent patted him down with plastic weapons in mind. The Respondent did not find anything.

The Respondent and Moore entered the bathroom, a room used by the building's janitorial staff as a locker room and lounge. All of the male BXPC members had a key to the room. An extra copy of the key was kept inside the command. Moore entered a stall, which had an inch-wide gap. The Respondent stood three feet away and watched Moore use the toilet.

Approximately three minutes later, Oconnor appeared in the bathroom. He screamed at the Respondent and ordered him to take Moore outside. Approximately seven minutes later, Oconnor gave the Respondent authorization to arrest Moore.

When asked if there were any other times that someone other than a Department or building employee used that bathroom, the Respondent replied that it happened on at least 50 or 60 occasions, such as when a child needed to go.

The Respondent did not consider Moore to be a prisoner when he let him into the bathroom. The Respondent had not yet arrested him or placed him in handcuffs. If Moore had

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been a prisoner at that point, the Respondent would have taken him upstairs to use the cell bathroom on the fourth floor (where the Bronx DA's Office Squad was located)

On cross-examination, the Respondent testified that he reconciled with Rivera approximately four months after the August 2009 incident. He explained that he cared for Rivera, and she had supposedly gotten help. He never asked Rivera to write a letter to the DA's Office on his behalf.

The Respondent stated that when Rivera dove headfirst into the car, the Respondent was not holding her purse or cell phone.

The Respondent admitted that he did not identify himself to the 911 operator. He claimed that he did not have a chance to do so. He contended that he asked for the police not so that Rivera could be arrested, but because the Patrol Guide required him to notify the Department about off-duty incidents.

While on the telephone, one of the men at the scene pushed the Respondent backward. It was then that the Respondent displayed his shield and Department ID card. The Respondent told the man that he was under arrest, and the man replied that he did not believe the Respondent was a police officer. The Respondent attempted to handcuff both Rinando and the man who had pushed him.

When the Respondent handcuffed Rivera and brought her back to the car, he was not "at that point" placing her under arrest. Her main priority at that point was getting her medical attention. He did not show his shield and ID card to Cody because he was more concerned about tactics once he saw that Cody had a gun. As for Norberg and Leahy, he did not get a chance to show his shield or ID card to them because they tackled him first.

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The Respondent testified that during the BXPC incident on November 15 2007, he wanted to delay Moore from leaving but the man was free to leave at that point. The Respondent's trip across the street to Zelenka's office lasted seven or eight minutes. Even after he confirmed with Zelenka that the identification was fraudulent, however, Moore was still free to leave. The Respondent explained, "In the street I would have been able to arrest that man just on my own police knowledge and skills, but there in the property clerk office I cannot do the arrest without getting authorization from a sergeant. So he could have walked away at any time."

FINDINGS AND ANALYSISDisciplinary Case No. 83935/08

As developed at trial, the gravamen of the Department's case was that it was improper for the Respondent to allow Kevin Moore, an individual suspected of presenting false identification at the Bronx Property Clerk, to use a private bathroom in the Criminal Court building. That might be part of what the two specifications charge, but not all of it. To evaluate the specification, the entire language of the charges needs to be considered.

Specification No. 1 charges that the Respondent "fail[ed] and neglect[ed] to properly safeguard a prisoner" by "let[ting] a prisoner out of his sight and control while in an unauthorized bathroom." Specification No. 2 charges that he "fail[ed] and neglect[ed] to immediately notify a supervisor that [he] let a prisoner out of his sight and control while in an unauthorized bathroom."

The first issue, therefore, is whether Moore was a prisoner when the Respondent let him use the bathroom in question. The bathroom was located in the Basement level (B) of the Bronx

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Criminal Court building The building housed Family Court as well as offices of the District Attorney and Bronx DA Squad Zelenka, an ADA in charge of such cases, told the Respondent that the DA's Office would prosecute Moore's case The Respondent testified that when he returned to the Property Clerk, he told his supervisor, Oconnor, that Zelenka authorized the arrest Oconnor told him that he wanted to check with Zelenka himself Oconnor testified that he was unsure of the sequence of events, but stated that he would have checked with Zelenka himself before authorizing the arrest

The Patrol Guide indicates that some level of custodial control over the individual must exist for him to be considered a prisoner The Respondent argued that Moore was not yet arrested for presenting a forged instrument, nor in custody or otherwise detained The Court agrees with the Respondent in this regard Moore was not under arrest at the time and essentially was free to leave Had Moore not said anything after presenting the ID, but gathered on his own that there was a public men's bathroom on the upper floors, he could have gone upstairs and used it, and if he had decided not to return to BXPC for some reason, he could have left the building In fact while Oconnor stated that he "was assuming" the Respondent would have chased Moore the Respondent knew that he first needed authorization to arrest Moore

Because Moore was not under arrest when the Respondent let him use an employee's bathroom, he was not a "prisoner" within the meaning of the Patrol Guide Therefore, he is found Not Guilty of the two specifications in Case No 83935/08, both of which charge him with conduct relating to a prisoner

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Disciplinary Case No 85695/09

Introduction

On summation the Respondent's attorney compared the off-duty August 27, 2009, incident to *Rashomon*, the film in which a story is told from a variety of witness perspectives. Counsel found it an apt comparison because in his view, all the witnesses told a version of the truth in both that story and this case, with some untruths to serve their own purpose. Here, actually, there are large areas of agreement as to what took place. Only certain parts of the event are in dispute.

The basic facts are that the Respondent and his girlfriend, Janice Rivera, were driving in his personal vehicle. She became angry and got out of the car on a residential street. Rivera smashed the rear windshield with her hand, causing her to bleed. As the Respondent tried to get to Rivera, neighbors and bystanders approached, getting between the two. Rivera went down the street and the Respondent followed, putting a handcuff on her non-bleeding hand and attempting to return her to the scene. On-duty Department officers arrived on the scene.

For clarity, the individual specifications will be addressed in rough chronological order and not as numbered.

Specification No. 2

The Respondent is accused in the second specification of taking Rivera's property without permission. Rivera testified that she and the Respondent were supposed to go out that evening. She was angry, however, because the Respondent had been ignoring her calls. She went to his house, and confronted him when he returned with another woman. Rivera tried to drive off, but her car battery died, so the Respondent gave her a ride to try and find jumper.

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cables. They became angry at each other. Rivera asserted that when she got out of the car and started to call someone, the Respondent got out as well. Rivera put her phone in her pocketbook. The Respondent demanded to know whom she was calling, then grabbed her pocketbook. To try and get it back, Rivera jumped into the car. She was able to move from the front passenger seat to the driver's seat, and from there was yanked out of the vehicle by the Respondent. She claimed that at this point, the Respondent gave her the pocketbook but held on to her cell phone.

The Respondent agreed at trial that Rivera was very angry. He explained to her that the other woman was just a friend. He drove with Rivera to get jumper cables, but she became irate. He pulled over and told her to get out of the car because he was sick and tired of dealing with her. When Rivera refused, the Respondent took her pocketbook and placed it outside the car.

The Advocate represented that the conduct alleged by Rivera, i.e., the taking and retention of the cell phone, was the basis for Specification 2. Thus, the Court is assessing only that claimed conduct, and not the Respondent's admitted removal of the bag from the vehicle and placing it outside in order to get her out of his car.

While both the Respondent and Rivera had credibility problems, Rivera was less credible on this issue. Her testimony demonstrated that she was extremely angry during the event itself. Moreover, her still-extant anger colored her trial demeanor and testimony. Rivera admitted that she was angry when she felt that the Respondent was ducking her calls. Yet she did not go to his house, she only went "to the area" of it. Rivera nonetheless saw that the Respondent's vehicle was missing, and concluded that "obviously he was with someone." She was also close enough to the Respondent's home to see him emerge from a vehicle with a woman she claimed to know as a stripper. During the car ride with the Respondent, Rivera was "frustrated and furious" and didn't want to listen to anything. After, Rivera claimed, the Respondent returned her purse,

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she knew" he still had her phone because the bag's zipper was open and the Respondent's pocket was bulging. This was all before Rivera smashed the Respondent's rear windshield with her bare hand and tried to go home afterward with no apparent regard to the fact that she was bleeding.

While the Respondent was an interested witness as a matter of law, he rationally explained that when Rivera refused to leave his car, he removed her bag in an effort to make her leave. His account of this part of the evening was straightforward and unembellished. In weighing the credibility of the two parties, the Respondent's version has more effect than that of Rivera. Thus, the Department failed to prove by a preponderance of evidence that the Respondent took her property without permission, i.e. that he grabbed her pocketbook out of her hand and refused to give it or her cell phone back. Accordingly, the Court finds him Not Guilty of Specification No. 2.

Specification No. 3

The third specification charges the Respondent with getting into a physical altercation with Christopher Rinando and striking him with a firearm. Rinando observed an altercation between the Respondent and Rivera. He decided to intervene and was joined by at least two other men, Richard Gonzalez and Frank Ninivaggi.

Linda Dixon, a Logan Avenue resident, described the Respondent telling the men who had gathered "Leave us the fuck alone" and "Mind your own goddamn business." The men responded, "Take it easy, we're not going to hurt you."

Frank Ninivaggi described Rinando as "arguing" with the Respondent. Frank said that while the Respondent was trying to get to Rivera, on one side of the street, he and Rinando were

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preventing the Respondent from doing so by getting between him and the Respondent Janet Ninivaggi, Frank's wife when first observing the scene, described her reaction thusly 'She did something to make him angry and he was trying to assault her' Janet characterized Rinando as being "loud," but in the context of trying to help Rivera Rinando, according to Janet, was saying 'Leave her alone, why are you hitting a woman?' The Respondent Janet said yelled back

Rinando indicated that when he first got involved, Rivera was walking across the street followed by the Respondent Rinando saw the Respondent reach over Rivera, as if he was reaching into her purse, and she was screaming for him to get off her This could have been when, according to the Respondent, he was telling her that her phone was still in her purse Nevertheless Rinando grabbed the Respondent from behind by his shoulders and arms and pulled him away from Rivera in an attempt to calm the situation As the Respondent spun around and displayed his firearm, something hard struck Rinando's left elbow, causing a small cut

The Respondent testified that Rinando was acting profanely and violently He was not wearing a shirt, threw down the beer he was holding, and pushed the Respondent The Respondent was already on the phone with 911, and this action by Rinando knocked the phone out of his hand The Respondent tried to grab and handcuff Rinando, but Rinando grabbed him in a bear hug The Respondent fell, as did his gun He picked it up but denied that it struck Rinando

The 911 recording is persuasive and objective evidence of what occurred during the incident It took place before the Respondent displayed his firearm Before the operator even answered the phone, the Respondent exclaimed, 'You're going to jail' (Rinando testified that the

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Respondent tried to arrest him before any physical contact between the two) When the 911 operator answered the phone, the Respondent stated something indecipherable The first thing he asked for was a police car In the background, Rinando said to the Respondent something like, "How about asking for a fucking ambulance instead of a police car"? Rinando also gave the Respondent the address of the location after the Respondent asked, to no one in particular what it was Rivera was crying in the background, saying, "Oh my God!" Statements that the Respondent made to individuals at the scene included "Her phone's right there, I don't have anything," and "Police sir, walk away " The Respondent was out of breath and the 911 operator asked him several times, forcefully, to give her the details When she asked, "What's happening?," he responded, "I have a - I need a police car " He also asked for an ambulance The call ended abruptly, with people talking to the Respondent, voices raised on all sides (the Respondent testified that the call ended when he dropped the phone after Rinando grabbed him, while Rinando and the Ninivaggis said that Rinando was physically intervening to get the Respondent away from Rivera)

The Respondent's testimony about the behavior of the bystanders, especially Rinando was completely at odds with the Court's observation of that witness at trial Far from the wild drunk portrayed by the Respondent, Rinando was calm and mild-mannered in the Trial Room He was calm on the 911 recording as well, annoyed perhaps but not belligerent Even after being ostensibly threatened with arrest, Rinando calmly helped the Respondent by giving him the address and reminded him that the point of calling 911 should be to get an ambulance for Rivera Frank Ninivaggi, a retired FDNY lieutenant, and his wife Janet, similarly impressed the Court as straightforward reporters of the facts who came out of the security of their homes to assist someone They were not members of an angry mob

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Rinando and the Ninivaggis stood in stark contrast to the Respondent. He was agitated and emotional, as evidenced by his own 911 call in which he was out of breath. He said this was from trying to get Rivera out of the car, but there was also testimony from several witnesses, including the Respondent, that he was trying to fend off the bystanders who were trying to intervene between him and Rivera. Frank testified that the encounter shifted from one side of the street entirely to the other, constituting four vehicle widths.

When the 911 operator answered, rather than clearly identifying himself as one Department member to another, with name, rank, command, etc., the Respondent exclaimed something indecipherable. While the Respondent claimed at trial that Rinando, Frank and Gonzalez were being belligerent and cursing saying get her help," the 911 recording demonstrates that Rinando was calm and collected while the Respondent was agitated and out of breath. The Respondent testified that he told the gathered individuals, "I just called 911, I just called the ambulance," but that claim is not supported by the recording. The first thing he did on the 911 tape was to tell someone, "You're going to jail." He did not ask 911 for an ambulance until Rinando, who did curse, prompted him to do so. Moreover, the Respondent's claim that their plea for help constituted belligerence demonstrates his non-credibility.

The Respondent's demeanor during the course of an incident in which he claimed he was taking legitimate off-duty police action is important. When bystanders approached, the Respondent's first words were "stay back" and "police." The first thing he should have done was identify himself as a police officer as slowly and calmly as possible, stating his name, displaying both his shield and ID card, releasing Rivera if necessary to do so. Patrol Guide § 212-33 the procedure for confrontation situations, in which an off-duty officer is taking police action but is confronted by an on-duty officer in uniform, is not completely on point but still is

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instructive. The confronted officer is required to produce his ID card slowly and without unnecessary movement (see Patrol Guide § 212-33 [7]). He is to remain motionless, even at the expense of a suspect going free ([3]). Moreover, if he genuinely was concerned about Rivera's condition, he should have been welcoming assistance. Instead, the Respondent appeared to have been concerned mainly with telling the bystanders that they were under arrest. In sum, his admitted conduct created chaos and reveals him to be a non-credible witness about the events.

As such, the Court credits Rinando's assertion that the Respondent struck him with his firearm, and finds the Respondent Guilty of Specification No. 3.

Specification No. 4

The fourth specification charges the Respondent with pointing a firearm at Rinando, Frank and Gonzalez. He admitted doing so but asserted that he was justified because he was surrounded by Rinando, Frank, Gonzalez and others that were attacking him after he had already fallen, breaking three ribs. As noted supra, Rinando and Frank testified that they were trying to separate him from Rivera. Their testimony did not include any acts of violence toward the Respondent. Only Rinando stated that he came in physical contact with the Respondent, grabbing him by the arms and shoulders from behind and pulling him away from Rivera.

The same credibility judgments concerning Specification No. 3 apply here as well. The versions of events presented by Rinando and Frank were more credible than that of the Respondent. There was evidence that the Respondent fractured three ribs, but it is instructive that none of the witnesses saw him fall. This indicates to the Court that while he may have fallen, his claim of being "surrounded" by the bystanders and felled by a "bear hug" from

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Rinando was not credible. There was no evidence, aside from his non-credible testimony, that he was 'surrounded' by the bystanders and needed to draw his weapon.

The testimony of the Logan Avenue residents concerning the physical contact between the Respondent and Rinando is especially instructive on this point. Dixon stated that at one point Rinando touched the Respondent's shoulder. Rinando said that he grabbed the Respondent's arms and shoulders. But the Ninivaggis did not see Rinando touch the Respondent at all. Although the Respondent's attorney argued that this was evidence that they were shading their testimony to protect Rinando, the Ninivaggis' testimony demonstrates that any physical contact was so minimal that it was far from the attack the Respondent portrayed it as.

In sum, the Respondent was not in the type of situation he claims, where an angry mob was surrounding him and he had to remove his gun to protect himself. Cf. Case No. 81524/06, signed Aug. 22, 2008 (unholstering and display of firearm during off-duty traffic dispute was not inappropriate where the other individuals were the aggressors and surrounded the officer, goading and forcing him to fight). There was no valid reason for the Respondent to have pointed his gun at the bystanders. As such, the Court finds him Guilty of Specification No. 4.

Specification No. 1

It is charged in the first specification that the Respondent was involved in a verbal and physical altercation with Ms. Janice Rivera and when Ms. Rivera attempted to leave the scene said officer prevented her from doing so. The Advocate represented that this referred to his attempt to handcuff Rivera.

In the Department's view, the Respondent "engaged" in an altercation because he tried to 'yank' Rivera out of the car. The Respondent admitted that he tried to pull her by the legs out of

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his vehicle after she dove back in. The Advocate also argued that it was inappropriate for the Respondent not only to handcuff Rivera, but to drag her back to the scene. Several witnesses – Dixon, Janet Ninivaggi, Rinando, Barry, Cody and Rivera herself – testified that she was not coming with the Respondent willingly. Rinando described it as the Respondent “pulling her along like somebody would be pulling at their dog that wasn’t walking along.” The Respondent contended that Rivera walked back with him after he put on the cuff, and that she was compliant with him at that point.

In the Court’s view, from the outset, the Respondent was not taking legitimate police action against Rivera, his erstwhile girlfriend, because he had just been involved in a verbal and physical altercation with her, no matter who started it. All the Respondent needed to do – what he should have done – as a member of the service involved in a domestic dispute was to call 911, identify himself, and ask for the proper response. He knew who had smashed his windshield and where she lived. Moreover, the police had already been called – by the Respondent – and were on their way to the scene. Instead of waiting for on-duty officers to respond to his domestic dispute, the Respondent needlessly handcuffed Rivera and dragged her down the street. His failure to act appropriately compounded the situation and constituted a misuse of his police authority. Accordingly, his conduct was contrary to the good order, efficiency and discipline of the Department and he is found Guilty of Specification No. 1.

Specification No. 5

The fifth specification charges that the Respondent “failed to identify himself as a member of the Department during an off-duty incident.” The testimony by the Department’s witnesses varied on when and how, if at all, the Respondent identified himself. Dixon stated that

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he did not identify himself as a police officer until he “resisted arrest.” Rinando denied that the Respondent identified himself. Frank Ninivaggi testified that the Respondent identified himself as an officer and displayed his shield. Neither Janet Ninivaggi, Cody, Barry, Leahy nor Norberg heard the Respondent identify himself specifically as a police officer.

On the other hand, many witnesses heard the Respondent say the word “police,” “you’re under arrest,” “you’re going to jail,” etc. They knew that he was claiming to be a police officer, but that is very different from identifying oneself properly. That is especially the case once the on-duty officers arrived. Instead of producing his shield and ID card to them and stating his name and rank, the Respondent said, “I am a cop,” and pointed out individuals he wanted arrested for various putative offenses. It is worth noting that on the 911 recording, the Respondent never identified himself to the 911 operator clearly and unambiguously as a member of the Department.

The Respondent had an obligation to identify himself properly as a member of the Department during this off-duty incident. Because he failed to do so, he is found Guilty of Specification No. 5.

Specification No. 6

Here the Respondent is charged with identifying himself as a “government agent” during the incident. The Advocate argued that this was to the exclusion of properly identifying himself as a member of the Department.

Cody, an off-duty captain, was the only witness to testify that the Respondent identified himself as a “government agent.” On the other hand, several witnesses, including the Respondent, testified that he used the term “OGA” or “obstructing governmental

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administration," saying several times that various individuals were or should be under arrest for that offense

The Department failed to prove by a preponderance of the evidence that the Respondent identified himself as a government agent when Cody asked him whom he worked for. The Respondent had no conceivable reason to identify himself in this way. It is possible that Cody simply misheard or misunderstood the Respondent's chaotic statements and responses. As such, the Court finds the Respondent Not Guilty of Specification No. 6

Specification No. 7

The seventh specification charges that the Respondent, upon being directed by "off-duty New York City Police Captain Michael Cody to produce identification and to release Rivera, the Respondent 'did fail and neglect to comply with said order and resist being handcuffed." Cody testified that when he came upon the scene, he was off-duty and in plainclothes, specifically a SpongeBob T-shirt. He placed his captain's shield on his waist and tucked the shirt behind it. The Respondent told Cody, "I got her, she is OGA." Cody asked the Respondent if he was a police officer but he did not reply. Cody asked again, but the Respondent answered, "She is resisting." Cody instructed the Respondent to let go of Rivera, but he did not comply. Cody asked the Respondent a third time if he was a police officer, then an ambulance arrived at the scene.

The Respondent testified that he saw Cody's firearm upon his waistband, but did not see his shield. Cody was wearing not only the SpongeBob shirt but terrycloth shorts as well. The Respondent claimed that Cody said, "I'm on the job" and that he told Cody "[P]olice, identify yourself what is your shield, your tax." The Respondent claimed that he re-identified himself as

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a police officer. He testified that he did not show his shield and ID card to Cody because he was more concerned about tactics once he saw that Cody had a gun.

The Court credits Cody's testimony that his shield was visible. Cody's wife, Barry, a former sergeant and retired at the time of trial from the Department, also testified that the shield was visible. Notwithstanding Cody's casual dress, the Respondent's claim that he saw Cody's firearm on his waist but somehow missed the shield is not credible. Moreover, the fact that two officers in uniform, Norberg and Leahy, spoke to Cody, deferring to him and allowing him to approach the Respondent, should have indicated to the Respondent that Cody was a law enforcement officer. At no time before his arrest, however, did the Respondent effectively identify himself to Cody, Norberg, or Leahy. Indeed, the Respondent never showed his shield or gave his tax number to Cody, as he claimed to have asked of Cody.

Regrettably, the language of the charge is less than clear. There was no testimony that the Respondent was asked specifically by Cody to produce his shield or ID card. Nevertheless, Cody asked the Respondent several times if he was a law enforcement officer. The Respondent never answered the question. The Court finds that this constituted a failure 'to produce identification.' Further, the Respondent failed to release Rivera upon Cody's directive. The Respondent is found Guilty, therefore, of Specification No. 7. The resisting-being-handcuffed portion of the seventh specification is duplicated in the eighth specification and will be addressed there.

Specification No. 8

The eighth specification charges that after being "directed by New York City Police Sergeant Jude Norberg to get up against a vehicle," the Respondent "did fail and neglect to

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comply with said order and resist being handcuffed. Cody testified that he, Leahy and Norberg had to forcibly separate the Respondent from Rivera. According to Cody, the Respondent "was asked to step up against the car," but threw his arms back. Leahy and Norberg testified that they told the Respondent to place his hands on the car but the Respondent did not comply. Instead, he started to flail his arms.

The Respondent admitted that he was instructed to place his hands on the car. His reason for not complying was that the officers "just more or less bum rushed me."

The Court credits the testimony of the Department's witnesses demonstrating that the Respondent failed to release Rivera and place himself against the vehicle. The Respondent, while trying to minimize his misconduct by stating that he did not have time to comply, admitted that he was instructed to place his hands on the car and did not follow that instruction. Moreover, the Respondent's stiffening of his arms and refusal to place them on the vehicle demonstrates that he resisted being handcuffed. Cf. People v. Cotton, 143 A.D.2d 680 (2d Dept. 1988) (evidence was sufficient to prove resisting arrest, where defendant attempted to evade arrest by struggling with the officers). Accordingly, the Respondent is found Guilty of Specification No. 8.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222, 240 (1974). The Respondent was appointed to the Department on August 31, 1998. Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

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The Respondent has been found Guilty of several offenses arising from the course of one incident. After the Respondent became involved in a very public dispute with his girlfriend punctuated by her smashing of his car's rear windshield, individuals came upon the scene and saw that the girlfriend was injured. The Respondent was trying to get to the girlfriend. He claimed that he was trying to help her, but from the bystanders' perspective, they were trying to intervene between the two of them. One of them grabbed the Respondent, who pulled out his gun, striking that individual in the arm. He then pointed the firearm at several individuals. He handcuffed his girlfriend and dragged her back to his vehicle. During all of this, the Respondent failed to identify himself properly as a member of the Department. When on-duty officers arrived, the Respondent refused the directive to place his hands on the vehicle and resisted being handcuffed.

Other cases of off-duty wrongful display of a firearm have resulted in penalties of the loss of pay and placement on one year of dismissal probation. See, e.g., Case No. 83391/07 signed Oct. 20, 2010 (officer pointed her firearm at another driver during an off-duty road rage incident). On-duty cases not pertaining to police action, like a fight between two officers, have also resulted in a penalty short of termination. See, e.g., Case No. 85264/09, signed Nov. 12, 2010.

Here, however, there should be a higher penalty. The Court notes the poor disciplinary record of the Respondent. Additionally, the Respondent continues to display a complete lack of insight into the inappropriate nature of his action, arguing that he found himself embroiled in a situation and displayed "professionalism." In fact, the Respondent engaged in a misuse of police authority during a domestic incident between him and his girlfriend. Instead of backing away or stopping, and identifying himself by name, with shield and ID card unambiguously and

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continuously displayed, the Respondent yelled at several individuals that they were under arrest for various offenses. All these individuals were trying to do was intervene in what appeared to be a physical altercation. The Respondent's insistence that these individuals be arrested became incredible at times, such as stating that someone was under arrest for "assault" for pushing him. Finally, when on-duty officers arrived, the Respondent continued to inveigh against these individuals, pointing out people that should be placed under arrest and refusing to obey the commands of those officers.

Accordingly, the Court recommends that the Respondent be DISMISSED from employment with the New York City Police Department.

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner – Trials

APPROVED
AUG 08 2011

RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From Assistant Deputy Commissioner – Trials
To Police Commissioner
Subject CONFIDENTIAL MEMORANDUM
POLICE OFFICER MANUEL GOMEZ
TAX REGISTRY NO 922430
DISCIPLINARY CASE NOS 83935/08 & 85695/09

In 2008 and 2009, the Respondent received an overall rating of 4.0 "Highly Competent" on his annual performance evaluation. He was rated 3.5 "Highly Competent/Competent" in 2007. [REDACTED]

The Respondent has been the subject of one prior adjudication. In 2006, he forfeited 30 vacation days and was placed on one year dismissal probation for failing an integrity test by neglecting to take into custody and voucher a quantity of placebo heroin, failing to obey the lawful orders and instructions of his commanding officer to terminate his involvement in a criminal investigation, failing to surrender his pepper spray, helmet, and shield while on military duty, improperly retrieving his firearm while assigned to the Military and Extended Leave Desk, and neglecting to notify the Department of an off-duty domestic incident. He is currently on Special Monitoring – Level III due to poor performance.

For your consideration



David S. Weisel
Assistant Deputy Commissioner – Trials